

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF BESTUZHEV AND OTHERS v. RUSSIA

(Applications nos. 11350/20 and 26 others –
see appended list)

JUDGMENT

STRASBOURG

27 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Bestuzhev and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 6 April 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning

different aspects of unlawful deprivation of liberty of the organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

V. REMAINING COMPLAINTS

13. Some applicants further raised additional complaints under Articles 5 and 6 of the Convention concerning other aspects of their detention and fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 12 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 5809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the dispersal of the public assembly and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that there is no need to examine separately the remaining complaints under Articles 5 and 6 of the Convention about other aspects of their detention and the fairness of the administrative offence proceedings;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the dispersal of the public assembly;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 27 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	11350/20 18/02/2020	**Mikhail Yuryevich BESTUZHEV** 1974	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 16/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention there on 27/07/2019, in excess of three hours, for the sole reason of drawing up a record of administrative offence	4,000
2.	12507/20 21/02/2020	**Bair Solbonovich TOKTOKHOYEV** 1990	Sirosh Fedor Yevgenyevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of an administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	12519/20 21/02/2020	**Sergey Vladimirovich NIKIFOROV** 1991	Sirosh Fedor Yevgenyevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6 of CAO	fine of RUB 20,000	Moscow City Court 30/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 27/07/2019 and 29/07/2019 for drawing up a record of administrative offence and "to put an end to the administrative offence": no evidence/ assessment of "exceptional circumstances" under the CAO; administrative offence record compiled already on 27/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
4.	12521/20 21/02/2020	**Ildar Rinatovich KHUSNUTDINOV** 1993	Sirosh Fedor Yevgenyevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention there on 27/07/2019 in excess of three hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
5.	12524/20 21/02/2020	**Sergey Dmitriyevich PAVLOV** 1991	Sirosh Fedor Yevgenyevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention there on 27/07/2019 in excess of three hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	15272/20 12/03/2020	**Aleksey Igorevich GRISHIN** 1996	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 08/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention there on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
7.	17824/20 30/03/2020	**Konstantin Pavlovich GLAZKOV** 1991	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention there on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence	4,000

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8.	17894/20 30/03/2020	**Aleksandr Igorevich GONCHARENKO** 1999	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 27/07/2019 and 29/07/2019 as administrative suspect: no evidence/ assessment of "exceptional circumstances" under the CAO; administrative offence record compiled already on 27/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
9.	18723/20 30/03/2020	**Daniil Igorevich TYAZHKUN** 1985	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 8 of CAO	fine of RUB 250,000	Moscow City Court 16/01/2020	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police office on 27/07/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours until 7.00 a.m. on 28/07/2019 (raised on appeal)	7,500
10.	19117/20 23/03/2020	**Kirill Sergeyevich CHERNYY** 1993	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention there on 27/07/2019 in excess of three hours for the sole purpose of drawing a record of administrative offence	4,000
11.	19118/20 17/03/2020	**Ivan Anatolyevich KULNEV** 1983	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 18/09/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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12.	19122/20 23/03/2020	**Mikhail Sergeyevich BELOUSOV** 2000	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 16/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 27/07/2019 and 29/07/2019 for the sole purpose of drawing up a record of administrative offence (such record had already been drawn up on 28/07/2019): no evidence/assessment of any "exceptional circumstances" under the CAO; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	19123/20 23/03/2020	**Yevgeniy Nikolayevich ARAPOV** 1997	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention there on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	19127/20 23/03/2020	**Yekaterina Sergeyevna NIZOVTSEVA** 1994	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 30/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 for the sole purpose of compiling a record of administrative offence	4,000

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15.	19131/20 23/03/2020	**Maksim Vladimirovich IVANOV** 1976	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence	4,000
16.	19132/20 23/03/2020	**Anton Dmitriyevich DEGTYAREV** 1998	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 18/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police office on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	19310/20 23/03/2020	**Vasiliy Pavlovich RODIONOV** 1996	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police station, detention between 27/07/2019 and 29/07/2019 for the purpose of drawing up a record of administrative offence and "case examination" (administrative offence record drawn up on 27/07/2019): no evidence/assessment of any "exceptional circumstances" under the CAO; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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18.	19314/20 23/03/2020	**Artem Aleksandrovich ZAYCHIKOV** 1978	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 8 of CAO	fine of RUB 150,000	Moscow City Court 30/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention between 27/07/2019 and 29/07/2019 for the purpose of drawing up a record of administrative offence (compiled on 29/07/2019): no evidence/assessment of any "exceptional circumstances" under the CAO; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	6,000
19.	19315/20 25/03/2020	**Elvin ALLAKHVERDIYEV** 1998	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
20.	19317/20 25/03/2020	**Olga Anatolyevna KUNGUROVA** 1990	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/12/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police office, detention on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence	4,000

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21.	19557/20 23/03/2020	**Artem Tsolakovich KARAPETYAN** 1957	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police office, detention on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence	4,000
22.	19608/20 16/03/2020	**Andrey Gennadyevich AGAPOV** 1984	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 27/07/2019 and 29/07/2019 as administrative suspect: no evidence/assessment of any "exceptional circumstances" under the CAO; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
23.	19905/20 23/03/2020	**Ilya Georgiyevich SHAFRANOV** 1966	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 18/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention on 27/07/2019 in excess of three hours for the sole purpose of drawing a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4.000

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24.	34493/20 26/06/2020	**Andrey Konstantinovich KURNITSKIY** 1987	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 26/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention between 27/07/2019 and 29/07/2019 for the purpose of drawing up a record of administrative offence: no evidence/assessment of any "exceptional circumstances" under the CAO; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
25.	34841/20 29/03/2020	**Dmitriy Aleksandrovich AMELIN** 1973	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 27/07/2019 and 29/07/2019 for the sole purpose of drawing up an administrative offence record (complied on 29/07/2019 only)	4,000
26.	35179/20 11/08/2020	**Dmitriy Igorevich TIMOFEYEV** 1995	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention on 27/07/2019 for the sole purpose of drawing a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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27.	35211/20 11/08/2020	**Mikhail Sergeyevich AVERIN** 1999	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 16/12/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.